

Tai, who won a Supreme Court dispute over commercial tourism operations rights on the Rangitoto and Motutapu islands in the Hauraki Gulf. *Ngāi Tai* argued that by issuing tourism concessions to other entities (including a commercial tourism operator), DoC did not properly give effect to Section 4 of the Conservation Act, relating to the principles of *Te Tiriti o Waitangi* (Neilson, 2018).

This research identifies a gap in the literature concerning Māori views on MMT management, particularly within the legal context of Aotearoa/New Zealand. Although the Marine Mammals Protection Act 1978 (MMPA) and the related regulations (MMPR 1992) are designed to safeguard marine mammals, Māori participants voiced apprehensions about the insufficient meaningful engagement and the inadequate consideration of iwi interests (Mulcahy & Peart, 2012). These insights mirror criticisms of the Conservation Act 1987, which requires the incorporation of *Te Tiriti o Waitangi* (Treaty of Waitangi) principles but has been applied inconsistently in reality (Levine, 2016; Rodgers, 2017).

This study underscores the necessity for a re-evaluation of the MMPR 1992 to more effectively incorporate Māori principles and ensure their active involvement in decision-making processes. This is consistent with previous work, which highlights the importance of co-management and the acknowledgment of Māori as *kaitiaki* (guardians) of marine resources (Orams, 2003; Rodgers, 2017). Examples such as the legal acknowledgment of the Whanganui River as a person (Clark et al., 2018; Knauß, 2018) illustrate the potential for novel legislative approaches that mirror Māori perspectives. Embedding Māori ontologies into MMT governance, can help Aotearoa/New Zealand rectify the limitations of existing policies and establish a more inclusive and sustainable model for marine conservation.

Māori ontologies and their connection with marine mammals

Ka mau tonu ngā taonga tapu o ngā matua tupuna
Koinei ngā taonga i tuku iho, na te ātua
Hold fast to the treasures of the ancestors
For they are the treasures that have been handed down to us by God
(Dymond, 2013, p. 274)

The findings of this study provide valuable insights into how indigenous Māori experience and articulate their unique historical, cultural, and spiritual connection with marine mammals. To Māori, marine mammals are considered *taonga* (cultural treasures), so when a whale washes up on a beach, it